

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Temporary Judge Catherine Evans

Date: 08/19/2026

Court Room Rules and Notices

If the tentative rulings below are for a past date, please try the following to force a refresh of this page:

For a Windows-based computer, press "Cntrl" + "Shift" + "R" at the same time.

For an Apple computer, press "Cmd" + "Shift" + "R" at the same time.

#	Case Name	Tentative
1	Johnson – Trust; 30-2024-01427023	Motion to Quash Petitioner Tricia M. Johnson’s unopposed Motion to Quash Deposition Subpoena Served on the Kaiser Foundation, etc. (ROA 99) is GRANTED. This proceeding arises out of a petition filed seeking instructions regarding the Patricia J. Johnson Revocable Trust dated February 11, 2019 (Trust). According to the petition, the settlor of the Trust, Patricia J. Johnson, passed away on January 8, 2023. (ROA 1 at 5:16-17.) Thereafter, her daughter Amy Lynn Bromley became trustee. Pursuant to the initial terms of the Trust, Amy would receive 50% of the Trust assets with her brothers Steven Edward Johnson and Russell Phillip Johnson, receiving 25% each. (ROA 2 at 3:18-27.) Under the terms of document entitled “Chattel Schedule,” executed in October 2019, Amy allegedly would receive 100% of the real property (the primary Trust asset), while Steven and Russell would receive “Proceeds of Unsecured Promissory Note in the Sum of \$500,000 from Amy.” (ROA 2 at 4:23-5:14.) In September 2024, Petitioner Tricia M. Johnson, Steven’s wife, filed a petition (Petition) seeking, in part, to void the Chattel Schedule amendment to the Trust on the ground of the settlor’s undue influence and diminished capacity. Steven had been diagnosed with dementia, so Tricia filed on his behalf pursuant to a financial power of attorney. (ROA 2 at 2:10-14.)

		Amy objected to the Petition on various grounds, including the assertion Tricia lacked standing to file the Petition because Steven lacked the capacity to sign financial power of attorney. (ROA 14 at 2:6-12.) Steven passed away in April 2025. (ROA 99 at 17:6.) Tricia is Steven's surviving spouse, the trustee of Steven's revocable living trust, and the nominated executor of Steve's will. (ROA 99 at 17:7-12.) In July 2025, Tricia supplemented her petition to assert her standing to pursue the petition as Steven's successor in interest. (ROA 21.) In April 2026, Amy served a series of subpoenas, including the subpoena that is the subject of the motion to quash currently before the court. The subpoena seeks Steven's medical records from Kaiser Permanente. Tricia's motion seeks to quash that subpoena on grounds of relevance, privilege, and privacy. Amy as the subpoenaing party bears the burden of showing a ""plausible justification"" for acquiring documents from a third party." (<i>Facebook, Inc. v. Superior Court (Touchstone)</i> (2020) 10 Cal.5th 329, 345.) Amy did not file any opposition to the motion. Accordingly, she fails to meet her burden. Further, the subpoena does not seek documents relevant to the Trust or any issue raised by the Petition. Steven's medical records are relevant only to Amy's assertion that the power of attorney under which Tricia filed the Petition was void based on Steven's lack of capacity. Amy, however, is now proceeding as Steven's successor in interest. (Code of Civ. Proc., § 377.30 et seq.) No dispute is presented by the pleadings as to Tricia's standing as successor in interest. Because the pleadings govern what is relevant and in the absence of any opposition, the motion to quash is GRANTED. Amy is directed to give notice.
2	Pickler – Trust; 30-2025-01478211	DISMISSED